

2013 WL 5411521 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Kevin HENRY, Plaintiff,

v.

THE CITY OF NEW YORK, a municipal entity, New York City Police Deputy Inspector Vincent J. Patti, New York City Police Sergeant **Joseph Jette**, New York City Police Officer Jason Broadwick, New York City Police Detective Darnay Harris, New York City Police Detective James Rivera, New York City Police Officer Robert V. Romano, and New York City "John Doe 1-10" Police Officers, Defendants.

No. 0016831-2013.
September 18, 2013.

Summons

David A. Thompson, Esq., Stecklow Cohen & Thompson, Attorneys for Plaintiff Kevin Henry, 10 Spring Street, Suite 1, New York, N.Y. 10012, (212) 566-8000.

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance on the attorney for the plaintiff(s) within twenty (20) days after service of this Summons, exclusive of the day of service [or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York] and in case of your failure to appear or answer, judgment will be taken against you for the relief demanded in the complaint.

Dated: New York, N.Y. September 17, 2013

COMPLAINT

Plaintiff KEVIN HENRY, by his attorney, David A. Thompson, Stecklow Cohen and Thompson, complaining of the defendants, respectfully alleges as follows upon information and belief:

I. PRELIMINARY STATEMENT

1. Plaintiff KEVIN HENRY bring this action for compensatory damages, punitive damages and attorney's fees pursuant to [42 U.S.C. § 1983](#) and [42 U.S.C. § 1988](#) for violations of his civil rights, as said rights are secured by said statutes and by the Constitutions of the State of New York and of the United States.

2. On the afternoon of Friday, June 22, 2012, Plaintiff KEVIN HENRY lived at 1664 Dean Street. At the time of this incident Plaintiff was away from home, visiting members of his extended family. While Plaintiff was away, members of the NYPD, the Defendant POLICE OFFICERS herein, invaded Plaintiff's home. The Defendant POLICE OFFICERS invaded Plaintiffs home without a warrant to search Plaintiff's home, without a warrant for Plaintiffs arrest, and without exigent circumstances necessitating their entry into Plaintiff's home.

3. Once inside, the Defendant POLICE OFFICERS wreaked havoc within Plaintiff's home, destroying multiple items of Plaintiff's personal belongings, causing lasting damage to the walls and floors of Plaintiff's home, and damaging Plaintiff's property and personal belongings in the manner described herein. The Defendant POLICE OFFICERS failed to find any contraband or other reason for their invasion.

4. Upon Plaintiffs return to 1664 Dean Street, Plaintiff discovered that his home was no longer habitable. Plaintiff was forced to move as a result of the Defendant POLICE OFFICERS' conduct. Plaintiff was forced to replace most of his personal belongings as a result of the Defendant POLICE OFFICERS' conduct. Plaintiff did not pay rent at 1664 Dean Street. Plaintiff pays rent at his current apartment. Plaintiff suffered emotional and mental stress as a result of having to move and, in effect, start over in another apartment, as a direct result of the Defendant POLICE OFFICERS' constitutionally violative conduct.

5. Plaintiff has suffered from Defendants' wonton, reckless and malicious conduct, and is entitled to both compensatory and punitive damages.

II. JURISDICTION & VENUE

6. Venue is proper for the Kings County Supreme Court of the city of New York pursuant to [CPLR § 503](#) as the Incident described herein occurred in Kings County, New York.

7. Venue is proper for the Kings County Supreme Court as Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the state of New York.

III. JURY DEMAND

8. Plaintiff respectfully demands a trial by jury of all issues in this matter.

IV. JURY DEMAND

9. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to [Fed. R. Civ. P. 38\(b\)](#).

V. THE PARTIES

10. Plaintiff KEVIN HENRY is an African-American male who at all relevant times was and is a resident of the State of New York, in Kings County.

11. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York. Defendant THE CITY OF NEW YORK maintains the New York City Police Department (the "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

12. Each and all of the acts of the Defendant Police Officers alleged herein were done by said defendants while acting within the scope of their employment by Defendant THE CITY OF NEW YORK.

13. At all times relevant to this action, the individually named Defendant NEW YORK CITY DEPUTY INSPECTOR PATTI ("Defendant DEPUTY INSPECTOR PATTI") was a duly sworn police officer of said department and was acting under the

supervision of said department and according to his official duties. Plaintiff sues Defendant DEPUTY INSPECTOR PATTI in his official and individual capacities.

14. At all times relevant to this action, the individually named Defendant NEW YORK CITY POLICE OFFICER ROBERT V. ROMANO (“Defendant POLICE OFFICER ROMANO”) was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff sues Defendant POLICE OFFICER ROMANO in his official and individual capacities.

15. At all times relevant to this action, the individually named Defendant NEW YORK CITY POLICE DETECTIVE DARNAY HARRIS (“Defendant POLICE DETECTIVE HARRIS”) was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff sues Defendant POLICE DETECTIVE HARRIS in his official and individual capacities.

16. At all times relevant to this action, the individually named Defendant NEW YORK CITY POLICE DETECTIVE JAMES RIVERA (“Defendant POLICE DETECTIVE RIVERA”) was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff sues Defendant POLICE DETECTIVE RIVERA in his official and individual capacities.

17. At all times relevant to this action, the individually named Defendant NEW YORK CITY POLICE SERGEANT **JOSEPH JETTE** (“Defendant POLICE SERGEANT JETTE”) was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff sues Defendant POLICE SERGEANT JETTE in his official and individual capacities.

18. At all times relevant to this action, the individually named Defendant NEW YORK CITY POLICE OFFICER JASON BROAD WICK (“Defendant POLICE OFFICER BROAD WICK”), was a duly sworn police officer of said department and was acting under the supervision of said department and according to his official duties. Plaintiff sues Defendant POLICE OFFICER BROAD WICK in his official and individual capacities.

19. At all times hereinafter mentioned, the Defendant POLICE OFFICERS JOHN DOES 1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties. Plaintiff sues these Defendants in both their individual and official capacities.

20. At least thirty (30) days have elapsed since the demand, claim or claims upon which this action is founded were presented to a director or officer of THE CITY OF NEW YORK and the CITY has neglected or refused to make an adjustment or payment thereof for thirty days after such presentment.

VI. FACTS COMMON TO ALL CLAIMS

THE DEFENDANTS POLICE OFFICERS' WARRANTLESS SEARCH AND DESTRUCTION OF PLAINTIFF KEVIN HENRY'S HOME CAUSES PLAINTIFF TO RELOCATE AND PAY THOUSANDS OF DOLLARS TO REPLACE HIS PERSONAL BELONGINGS

21. Plaintiff KEVIN HENRY currently resides at 106-08 Ruscoe Street, in Jamaica, New York.

22. On June 22, 2012, Plaintiff KEVIN HENRY lived at 1664 Dean Street in Brooklyn, New York.

23. Plaintiff KEVIN HENRY lived in the basement apartment of 1664 Dean Street.

24. Plaintiff KEVIN HENRY was visiting members of his extended family when the events described herein took place.

25. The Defendant POLICE OFFICERS entered Plaintiff KEVIN HENRY's home on June 22, 2012.

26. Upon information and belief, the Defendant POLICE OFFICERS did not have a warrant to search Plaintiff's home, nor did they have a warrant for Plaintiff KEVIN HENRY's arrest.

27. Upon information and belief, the Defendant POLICE OFFICERS did not have a warrant to arrest anyone staying within Plaintiff KEVIN HENRY's home on June 22, 2012.

28. Upon information and belief, no exigent circumstances necessitated the Defendant POLICE OFFICERS' entry into Plaintiff's home.

29. The Defendant POLICE OFFICERS destroyed Plaintiff KEVIN HENRY's apartment, and the property therein, including but not limited to:

- a. Breaking tables;
- b. Causing sewage pipes to burst, resulting in feces and urine covering sections of the floor within Plaintiff's kitchen, dining room, and living room;
- c. Strewing Plaintiff's clothes all over the floor of Plaintiff's bedroom;
- d. Breaking the front door;
- e. Removing sheetrock from the walls;
- f. Knocking over Plaintiff's refrigerator and stove, thereby ripping the gas line from the back of the stove and resulting in Plaintiff's food covering sections of the floor;
- g. Knocking over Plaintiff's entertainment center and television, resulting in the television being broken;
- h. Splitting and ripping up Plaintiff's sofa; resulting in the sofa being unusable;
- i. Causing standing sewage water to amass within Plaintiff home;
- j. Breaking various walls;
- k. Ransacking Plaintiff's closet and bedroom, including furniture within Plaintiff's bedroom; resulting in the spoiling of several items of Plaintiff KEVIN HENRY's clothing;

30. Plaintiff's apartment was uninhabitable following the Defendant POLICE OFFICERS' search.

31. Plaintiff KEVIN HENRY was forced to move from his home at 1664 Dean Street.

32. Plaintiff KEVIN HENRY was forced to pay thousands of dollars to replace certain items, including but not limited to:

- a. Plaintiff's sofa;
- b. Plaintiff's television;

c. Multiple items of Plaintiff's clothing;

d. Multiple household appliances belonging to Plaintiff; including but not limited to, a microwave, refrigerator, and multiple cooling fans; and

e. Multiple DVDs, video game systems, video games, and other items that Plaintiff stored within his entertainment center.

33. Plaintiff did not have renters insurance, and thus was forced to replace the above-referred items out of his own pocket.

34. Whereas Plaintiff paid his rent at 1664 Dean Street by providing his landlord with labor, after relocating, Plaintiff began paying \$600 per month in rent.

35. On at least one prior occasion Defendants POLICE DETECTIVE HARRIS and POLICE DETECTIVE RIVERA and other members of the NYPD invaded an apartment a second time after a lawsuit was filed against them for an unlawful prior invasion.

36. Upon information and belief, the Defendant POLICE OFFICERS' raid of Plaintiff's apartment was motivated, in whole or in part, by a desire to retaliate against Plaintiff KEVIN HENRY for filing a notice of claim and/or civil complaint for the violations of Plaintiff's constitutional rights NYPD Detective James Rivera, NYPD Detective Darnay Harris, and other officers and supervisors of the NYPD's Brooklyn Narcotics Unit and/or the 77th Precinct.

37. Plaintiffs prior claims ("Plaintiffs' June 2011 Claims") against Defendant THE CITY OF NEW YORK and members of the NYPD stemmed from a similar incident that took place approximately one year to the date prior to the Defendant POLICE OFFICERS' June 22, 2012 raid of Plaintiff KEVIN HENRY's home.

38. Plaintiff KEVIN HENRY was emotionally harmed as a result of the Defendant POLICE OFFICERS' actions, and is to this day, weary of returning to the area surrounding his former home; that is, the area of Brooklyn patrolled by officers of the 77th Precinct and related police units.

39. As a result of Defendants' impermissible conduct, Plaintiff KEVIN HENRY demands judgment against Defendants' in a sum of money to be determined at trial.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF PLAINTIFF'S FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983 AGAINST DEFENDANT THE CITY OF NEW YORK, AND THE INDIVIDUAL DEFENDANTS

40. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

41. Defendant THE CITY OF NEW YORK and its agents, servants and employees, including but not limited to, Defendants NEW YORK CITY POLICE DEPUTY INSPECTOR PATTI, NEW YORK CITY POLICE SERGEANT JETTE, NEW YORK CITY POLICE OFFICER BROADWICK, NEW YORK CITY POLICE DETECTIVE HARRIS, NEW YORK CITY POLICE DETECTIVE RIVERA, NEW YORK CITY POLICE OFFICER ROMANO, and NEW YORK CITY "JOHN DOE 1-10" POLICE OFFICERS ("Individual Defendants"), and Defendant THE CITY OF NEW YORK (collectively, "Defendants") deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of [42 U.S.C. § 1983](#).

42. All of the aforementioned acts of the Defendants were carried out under the color of state law.

43. The acts complained of were carried out by the Individual Defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

44. The acts complained of were carried out by the Individual Defendants as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant THE CITY OF NEW YORK and the New York City Police Department ("NYPD"), all under the supervision of ranking officers of said department.

45. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer damages.

46. Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF

VIOLATION OF PLAINTIFF'S FOURTH AND FIFTH AMENDMENT RIGHTS UNDER 42 U.S.C. §1983 ARISING FROM DEFENDANTS' WARRANTLESS ENTRY INTO HIS HOME

47. The Individual Defendants raided and ransacked Plaintiff's home.

48. The Individual Defendants did so without a warrant, and without probable cause.

49. The Individual Defendants did so without knocking or announcing themselves.

50. The Individual Defendants unlawfully entered and searched Plaintiff's home.

51. The Individual Defendants damaged and destroyed Plaintiff's personal property.

52. As a result, Plaintiff was harmed or injured, and seeks compensation in an amount to be determined at trial.

THIRD CLAIM FOR RELIEF

VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 ARISING FROM DEFENDANTS' FAILURE TO INTERVENE

53. The Individual Defendants had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights.

54. The Individual Defendants failed to intervene on Plaintiffs behalf to prevent the violation of his constitutional rights, despite having had realistic opportunities to do so.

55. The Individual Defendants failed to intervene on Plaintiff's behalf to prevent the violation of Plaintiff's constitutional rights despite having substantially contributed to the circumstances within which the Plaintiff's rights were violated by the Individual Defendants' affirmative conduct.

56. As a result of the aforementioned conduct of the Individual Defendants, Plaintiff's constitutional rights were violated.

57. As a result, Plaintiff was injured, and seeks compensation in an amount to be determined at trial.

FOURTH CLAIM FOR RELIEF

FAILURE TO TRAIN SUBORDINATES AGAINST THE DEFENDANT SUPERVISING OFFICERS

58. Defendant POLICE INSPECTOR PATTI and Defendant POLICE SERGEANT JETT (“Defendant SUPERVISING OFFICERS”) were officers acting with supervisory authority over Defendants POLICE OFFICER BROAD WICK, DETECTIVE RIVERA, POLICE OFFICER ROMANO, and POLICE OFFICERS “John Does 1-10” (“SUBORDINATE OFFICERS”).

59. The Defendant SUPERVISING OFFICERS knew or should have known that the Defendant SUBORDINATE OFFICERS had a proclivity for violating the constitutional rights of people with whom the Defendant SUBORDINATE OFFICERS came into contact.

60. The Defendant SUPERVISING OFFICERS knew or should have known that the Defendant SUBORDINATE OFFICERS needed training in how to refrain from such misconduct.

61. The Defendant SUPERVISING OFFICERS knew or should have known that the Defendant SUBORDINATE OFFICERS needed further training in how to refrain from such misconduct.

62. The Defendant SUPERVISING OFFICERS were deliberately indifferent to the Defendant SUBORDINATE OFFICERS’ need for such training.

63. As a result, Plaintiff was harmed or injured.

FIFTH CLAIM FOR RELIEF

FAILURE TO SUPERVISE SUBORDINATES AGAINST THE SUPERVISING OFFICERS

64. The Defendant SUPERVISING OFFICERS knew or should have known that the Defendant SUBORDINATE OFFICERS had a proclivity for violating the constitutional rights of people with whom these detectives came into contact.

65. The Defendant SUPERVISING OFFICERS knew or should have known that the Defendant SUBORDINATE OFFICERS needed supervision to prevent them from committing further such misconduct.

66. The Defendant SUPERVISING OFFICERS failed to effectively discipline the Defendant SUBORDINATE OFFICERS for their misconduct.

67. The Defendant SUPERVISING OFFICERS failed to correct the Defendant SUBORDINATE OFFICERS for their unconstitutional policing practices.

68. As a result, Plaintiff was harmed and injured, and seeks compensation in an amount to be determined at trial.

SIXTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER MONELL UNDER 42 U.S.C. §983 ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICIES AND CUSTOMS

69. Defendant THE CITY OF NEW YORK and the NYPD established official policies directing and promoting unconstitutional practices by NYPD officers, and have tolerated, condoned and permitted widespread unconstitutional practices by NYPD officers, including the Individual Defendants in this case.

70. Defendant THE CITY OF NEW YORK indemnifies and shields NYPD officers who repeatedly and habitually violate individuals' constitutional rights, such as the Individual Defendants herein.

71. Defendant THE CITY OF NEW YORK implements quotas for individual officers' arrests, thus incentivizing or compelling unconstitutional misconduct by individual officers.¹

72. Defendant THE CITY OF NEW YORK tolerates and condones police perjury.²

73. Defendant THE CITY OF NEW YORK implements, tolerates, and fails to punish unlawful, warrantless home invasions by police. To wit, one lawsuit filed against Defendant THE CITY OF NEW YORK and members of the NYPD alleges unlawful conduct by Defendant POLICE SERGEANT JETTE related to a home invasion undertaken without a warrant.³

74. Further, Defendants DETECTIVE HARRIS and Defendant DETECTIVE RIVERA, are or were defendants in TWENTY other lawsuits.

75. Between them, the two officers are or were defendants in TWENTY other lawsuits.

76. Defendants DETECTIVE DARNAY HARRIS and DETECTIVE JAMES RIVERA are *joint defendants* in TWO other civil cases alleging police misconduct.⁴

77. Defendant DETECTIVE DARNAY HARRIS is or was a defendant in EIGHT other civil cases alleging police misconduct.⁵

78. Defendant DETECTIVE JAMES RIVERA is or was a defendant in TEN other civil cases alleging police misconduct.⁶

79. Defendant THE CITY OF NEW YORK has paid at least \$953,000 in the eleven of these cases that have terminated.

80. The 77th Precinct, where Defendants DETECTIVE DARNAY HARRIS and DETECTIVE JAMES RIVERA were based on and about June 23, 2011, is rife with other examples of official misconduct enabled and ratified by Defendant THE CITY OF NEW YORK.

81. Further, Defendant POLICE OFFICER ROMANO has been a Defendant in five other lawsuits.⁷

82. Defendant DEPUTY INSPECTOR PATTI is currently a Defendant in one other lawsuit.⁸

83. Defendant THE CITY OF NEW YORK recently settled another civil suit brought by a New York City firefighter alleging harassment as false arrest by members of the 77th Precinct, including a Deputy Inspector, for \$250,000.⁹

84. In 2007, a group of officers from the 77th Precinct violently arrested a pair of civil rights lawyers who protested while those officers beat a handcuffed arrestee.¹⁰ Defendant THE CITY OF NEW YORK recently settled the resulting civil rights action for \$360,000.

85. Like Defendants DETECTIVE DARNAY HARRIS and DETECTIVE JAMES RIVERA, the lead defendant in the aforementioned case, Defendant Sgt. Steven Talvy, has been named in multiple other civil suits for official misconduct.¹¹

86. Several other officers working out of the 77th Precinct are also defendants in multiple civil suits: Joseph Tillotson (4 suits), Anthony Carozza (3), John Acconi (2), Georgina Gonzalez (2)¹², Hector Morales (4),¹³ Eric Campbell (2),¹⁴ Jason Brunson (2),¹⁵ James Giblin (2).¹⁶ However, because there are no centralized public records of lawsuits arising from NYPD officer misconduct, it is probable that there are far more such suits involving officers from the 77th Precinct than those listed here.

87. Shielded by these policies of Defendant THE CITY OF NEW YORK, officers commit misconduct again and again.

88. Furthermore, the NYPD permits its officer to conduct apartment searches in the most destructive way possible.

89. NYPD officers routinely destroy property during a search for no legitimate law enforcement purpose.

90. NYPD officers are rewarded for doing so by receiving credit for improper arrests arising from such destructive practices.

91. These policies and practices caused the unlawful conduct of the Individual Defendants herein.

92. As a result, Plaintiff's constitutional rights were violated.

93. As a result, Plaintiff was harmed or injured, and seeks compensation in an amount to be determined at trial.

PENDANT STATE LAW CLAIMS

SEVENTH CLAIM FOR RELIEF CONVERSION AND TRESPASS TO CHATTELS AGAINST ALL DEFENDANTS

94. Plaintiff repeats and re-alleges each and every allegation set forth above.

95. Plaintiff repeats and re-alleges each and every allegation set forth above.

96. Plaintiff had title and/or the right to possess the personal property that the Defendants removed from and/or destroyed within Plaintiff's home.

97. Defendants' actions in removing and/or destroying Plaintiffs personal property and failing to return said property constitute conversion.

98. Plaintiff has been damaged and harmed as a result of Defendants' actions.

TENTH CLAIM FOR RELIEF

PUNITIVE DAMAGES AGAINST THE INDIVIDUAL DEFENDANTS

108., The actions of the Individual Defendants constituted intentional violations of federal law.

109. The actions of the Individual Defendants were motivated by evil motive or intent, or involved reckless or callous indifference to the federally protected rights of the Plaintiff.

110. As a result, the Plaintiff is entitled to an award of punitive damages in an amount to be determined at trial.

WHEREFORE, the Plaintiff demands compensatory damages on the foregoing causes of action:

1. On the first cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
2. On the second cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
3. On the third cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
4. On the fourth cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
5. On the fifth cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
6. On the sixth cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
7. On the seventh cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
8. On the eighth cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
9. On the ninth cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;
10. On the tenth cause of action, \$225,000, plus attorneys' fees, costs, and punitive damages;

And, award such other and further relief as the Court deems to be proper and in the interests of justice.

DATED: New York, New York September 17, 2013

Respectfully submitted,

DAVID A. THOMPS ESQ,

Stecklow Cohen & Thompson

10 SPRING STREET - SUITE 1

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[212] 202-4952/FAX

ATTORNEYS FOR PLAINTIFFS

Footnotes

- ¹ Fanelli, James, "Cops At Brooklyn's Crime-Ridden 77th Precinct Told To Meet Quotas For Moving Violations, Memos Say," New York Daily News, November 8, 2010. Article incorporated by reference herein and available online at http://articles.nydailynews.com/2010-11-08/local/27080554_1_memos-quotas-seat-belt; see also:

The New York Daily News, May 2, 2011; Parascandola, Rocco, “79th Precinct cops claim retribution: Nine officers say poor evaluations are payback from commander,” The New York Daily News, April 10, 2012. Article incorporated by reference herein and available online at: <http://www.nydailynews.com/new-york/79th-precinct-cops-claim-retribution-article-1.1059527>

- 2 Alexander, Michelle, “Why Police Lie Under Oath” The New York Times, February 2, 2013. Article incorporated by reference herein and available online at: <http://www.nytimes.com/2013/02/03/opinion/sunday/why-police-officers-lie-under-oath.html?pagewanted=all&r=0>; see also: Marzulli, John, “Judge Jack Weinstein rips NYPD on false arrests as brothers sue for \$10M over wrongful narcs bust,” The New York Daily News, Nov. 30, 2009. Article incorporated by reference herein and available online at: <http://www.nydailynews.com/news/crime/judge-jack-weinstein-rips-nypd-false-arrests-brothers-sue-10m-wrongful-narcs-bust-article-1.433711>
- 3 Boyle, Christina & Huthinson, Bill, “Brooklyn Woman Sues Decorated NYPD Sgt. **Joseph Jette** and the Department After He Allegedly Groped Her Breasts During a Gun Search” New York Daily News, March 26, 2013. Article incorporated by reference herein and available online at: <http://www.nydailynews.com/new-york/suit-nypd-alleges-groping-article-1.1299886>
- 4 1:12-cv-00243-SLT-RLM Clark et al v. City of New York et al, 12-cv-00243-SLT-RLM, Date filed: 01/19/2012; 1:12-cv-00087-FB-RLM Myrie v. City of New York et al, Date filed: 01/06/2012.
- 5 Aviles et al v. The City of New York et al, 11-cv-05147-CBA-RML, Date filed: 11/13/2006, Date terminated: 03/27/2008; 1:12-cv-02548-SLT-RLM Conyers et al v. City of New York et al, Date filed: 05/21/2012; 1:08-cv-01110-CPS-CLP Fulcher et al v. The City of New York et al, Date filed: 03/18/2008, Date terminated: 11/24/2008; 1:06-cv-02044-CPS-RML Hicks et al v. The City of New York et al, Date filed: 05/02/2006, Date terminated: 08/20/2007; 1:08-cv-03307-JG-LB James v. City of New York et al, Date filed: 08/22/2008, Date terminated: 04/07/2010; 1:04-cv-04533-NG-SMG Kolar v. City of New York et al, Date filed: 10/21/2004, Date terminated: 09/16/2005; 1:10-cv-00061-JG-RLM Mouzon et al v. City of New York et al, Date filed: 01/07/2010, Date terminated: 08/10/2010.
- 6 1:12-cv-00253-KAM-RER Booker v. City of New York et al, Date filed: 01/19/2012; 1:11-cv-04874-KAM-LB Brewster v. The City of New York et al, Date filed: 10/06/2011; 1:12-cv-00255-KAM-RER Cornwell v. City of New York et al, Date filed: 01/19/2012; 1:12-cv-00251-KAM-RER Croney v. City of New York et al, Date filed: 01/19/2012; 1:12-cv-00257-KAM-RER Deleon v. City of New York et al, Date filed: 01/19/2012; 1:10-cv-02425-ARR-LB Hagley et al v. City of New York et al, Date filed: 05/27/2010, Date terminated: 01/27/2011; 1:10-cv-00191-DGT-SMG Lewis v. City of New York et al, Date filed: 01/15/2010, Date terminated: 12/28/2010; 1:09-cv-01859-RJD-RER Marable v. City of New York et al, Date filed: 05/04/2009, Date terminated: 07/12/2010; 1:10-cv-00227-JBW-RER McMillan v. City of New York et al, Date filed: 01/20/2010, Date terminated: 06/30/2010; 1:09-cv-02204-CBA-JO Milano v. The City of New York et al, Date filed: 05/26/2009, Date terminated: 01/05/2010.
- 7 1:07-cv-04141-KAM-MDG Jacob et ano. v. City of New York et al., filed 10/03/07 closed 10/21/09; 1:1cv01743-RRM-CLP Latimore et al. v. City of New York et al. filed 04/08/2011 closed 11/23/201; 1:12-cv-02208 - ENV-LB Maddox v. City of New York et al., filed 05/06/11 closed 02/16/2012; 1:12-cv-00241-CBA-RER Williams et ano. v. City of New York et al., Filed 01/19/12 closed 09/04/12.
- 8 1:12-cv-05288-ENV-CLP Robinson et al. v. City of New York et al., filed 10/22/112 still open
- 9 Armaghan, Sarah, “City’s 250G puts out Bravest’s harass suit,” The Daily News, March 02, 2012, <http://articles.nydailynews.com/2012-03-02/news/311150161-social-club-charges-settlement-money>.
- 10 Hales, Larry, “Police beat, arrest civil rights attorneys,” Worker’s World, June 28, 2007, <http://www.workers.org/2007/us/warren-0705/>.
- 11 1:08-cv-02587-SLT-VVP Moody v. City of New York et al., filed 06/27/08 closed 07/16/09; 1:08-cv-03815-ARR-RER Warren v. City of New York et al, filed 09/18/08 closed 05/22/12; 1:08-cv-04595-RRM-VVP Franklin v. City of New York et al, filed 11/13/08 closed 11/10/09; 1:08-cv-04996-MKB-RML Sanders v. City Of New York et al, filed 12/11/08; 1:10-cv-04640-WFK-ALC Lywood v. City of New York et al, filed 10/08/10 closed 11/30/11.
- 12 1:11-cv-06010-WFK-VVP Findlay v. City of New York et al, filed 12/09/11; 11-cv-03553-ARR-VVP Pierre et al v. City of New York et al filed 7/25/2011.
- 13 1:05-cv-04039-SLT-MDG Gillespie v. City of New York et al, filed 08/23/05 closed 04/03/06; 1:10-cv-02330-MKB-VVP Phillips v. The City of New York et al, filed 05/21/10; 1:08-cv-04146-KAM-ALC Garrett v. The City of New York et al, filed 10/09/08 closed 07/20/10; 1:08-cv-04996-MKB-RML Sanders v. City Of New York et al filed 12/11/08.
- 14 1:06-cv-06454-ENV-CLP Walker v. The City of New York et al, filed 12/05/06 closed 09/28/07; 1:10-cv-05878-FB-VVP Manswell v. City Of New York et al, filed 12/17/10 closed 09/13/11; 1:1-cv-04783-SJ-RML Dugan v. City of New York et al, filed 09/30/2011;
- 15 1:10-cv-05878-FB-VVP Manswell v. City Of New York et al, filed 12/17/10 closed 09/13/11; 1:11-cv-05231-RRM-JO Hunter et al v. City of New York et al, filed 10/26/11 closed 05/14/12
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